Rules Relating to:

HOUSEHOLD GOODS CARRIERS

Chapter 480-15 WAC

WASHINGTON UTILITIES and TRANSPORTATION COMMISSION

Chapter 480-15 WAC
HOUSEHOLD GOODS CARRIERS

WAC

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480-15-040 Adoption by reference. [Statutory Authority: RCW 34.05.310, 34.05.356, 80.01.040, 80.04.160 and 80.04.160 [81.04.160]. WSR 99-20-013 (Order R-465, Docket No. A-980247), § 480-15-040, filed 9/24/99, effective 10/25/99. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-040, filed 12/15/98, effective 1/15/99.] Repealed by WSR 01-20-061 (Docket No. A-010827, General Order No. R-491), filed 9/28/01, effective 10/29/01. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.310.

480-15-050 Where may I get copies of documents adopted by reference? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-050, filed 12/15/98, effective 1/15/99.] Repealed by WSR 01-20-061 (Docket No. A-010827, General Order No. R-491), filed 9/28/01, effective 10/29/01. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.310.

480-15-060 How may I contact the commission? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-060, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority:

RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-070 Where is the commission located? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-070, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-080 How do I file documents with the commission? [Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-080, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-080, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-090 May I submit information to the commission confidentially? [Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-090, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-090, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-100 What form of payment does the commission accept? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-100, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-110 If I change my business address or telephone number, must I notify the commission? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-110, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-120 What rules apply to commission proceedings? [Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-120, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-120, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-130 What is the commission's compliance policy? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-130, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-140 How will the commission enforce this chapter? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-140, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-150 Why would the commission take administrative action? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-150, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-160 What sanctions apply to carriers operating without valid permits? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-160, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-170 What is a household goods permit? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-170, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-195 When will my existing household goods permit be reissued? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-195, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-200 Are there areas I may operate without a permit? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-200, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-210 Are there different kinds of household goods permits? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-210, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-220 How do I apply for a permit? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-220, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-240 How may a new entrant obtain authority? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-240, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-250 What is the process to expand the authority in an existing permit? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-250, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-260 Exceptions to the application process. [Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-260, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-260, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-

049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-270 Emergency temporary authority. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-270, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-270, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-280 Temporary authority. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-280, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-280, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-285 Rejecting or denying an application for temporary authority. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-285, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-285, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-290 Granting temporary authority. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-290, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-290, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-300 What conditions may be attached to my temporary authority? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-300, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-310 Commenting on actions regarding temporary authority. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-310, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-310, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-310, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-320 Canceling a temporary permit. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-320, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-320, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-330 Permanent authority. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-330, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-330, filed 12/15/98, effective 1/15/99.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-335 Exceptions to permanent authority application process. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-335, filed 12/27/07, effective 1/27/08.] Repealed by WSR 12-13-007 (Docket TV-111493, General Order R-565), filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075.

480-15-440 What happens if my permit is suspended for cause? [Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-440, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-440, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-460 What happens if my permit is canceled for cause? [Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-460, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-460, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-470 Rule books. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-470, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-540 What happens if my insurance filing is canceled? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-540, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-580 Accident reporting. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-580, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-600 Lease responsibilities. [Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-600, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-600, filed 12/15/98, effective 1/15/99.] Repealed by WSR 13-23-048 (Docket TV-130079, General Order R-573), filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130.

480-15-640 Verbal estimates. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-640, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket

TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-650 Form of estimates. [Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-650, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-650, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-670 Exceptions for nonbinding estimates. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-670, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290

480-15-680 Am I required to provide an accurate estimate? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-680, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290,

480-15-690 What will happen if I underestimate a household goods move? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-690, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290

480-15-700 What are the commission's guidelines in deciding to assess monetary penalties for underestimating? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-700, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-720 Who must issue bills of lading? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-720, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-730 What is the format for bills of lading? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-730, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-740 Information required on a bill of lading. [Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-740, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-740, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-760 What are my responsibilities to notify the shipper of the actual weight and charges for the shipment? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-760, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-770 Must I reweigh the shipment at the point of delivery if the shipper requests it? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-770, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-780 When may I refuse to provide service to a shipper? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-780, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-790 When must I not refuse service? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-790, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-795 Payment options. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-795, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-820 What must I do if I cannot resolve a claim within one hundred twenty days? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-820, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-840 Are complaint or claim records subject to commission review and in what order must I keep the records? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-840, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-850 What additional requirements exist if a claim involves more than one carrier? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-850, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-860 What information must be included in the claim or complaint record? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-860, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-870 What must I do if, after review, the shipper is still dissatisfied with the resolution of the complaint or claim? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-870, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-

070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-880 Must I respond to all written correspondence, complaints and claims? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-880, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-910 How do I register as a registered carrier? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-910, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-920 How do I register as a registered exempt carrier? [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-920, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-930 Registration fee and receipts. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-930, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

480-15-940 Insurance requirements for interstate operations. [Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-940, filed 12/15/98, effective 1/15/99.] Repealed by WSR 08-02-049 (Docket TV-070466, General Order R-547), filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290.

PART 1 - GENERAL

Part 1.1 - General Information

WAC 480-15-010 Purpose and application. (1) These rules implement the policies in RCW 81.80.020 as they apply to household goods carriers. The rules establish standards for public safety, fair competitive practices, just and reasonable charges, nondiscriminatory application of rates, adequate and dependable service and consumer protection, as well as compliance with statutes, rules and commission orders.

(2) This chapter applies to all intrastate household goods carriers.

(3) Nothing in this chapter relieves any household goods carrier from its duties and obligations under the laws of the state of Washington including, but not limited to, public utility, labor, employment, and other taxes, and business and vehicle licensing requirements.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-010, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-010, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-010, filed 12/15/98, effective 1/15/99.]

WAC 480-15-020 Definitions. For the purpose of this chapter, the words, terms, and phrases in this section have the following meaning:

Accessorial services: Any service provided by a household goods carrier that supplements, or is incidental to, the transportation of household goods. Examples include packing, unpacking, wrapping or protecting a portion of the shipment or providing special equipment or services such as hoisting.

Agent: A permitted carrier, who, under the provisions of a formal written agreement, performs services on behalf of another permitted carrier.

Application docket: A commission publication listing applications requesting operating authority.

Authority: The rights granted to a carrier to transport household goods.

Cancellation: An act by the commission to terminate a household goods carrier's authority.

Carrier or household goods carrier: A person who transports for compensation, by motor vehicle within this state, or who advertises, solicits, offers, or enters into an agreement to transport household goods.

Commission: The Washington utilities and transportation commission.

Customer: Anyone who hires a household goods carrier.

Engaging in business as a household goods carrier: Transporting household goods for compensation, by motor vehicle within this state, or advertising, soliciting, offering, or entering into an agreement to transport household goods.

Estimate:

(a) Nonbinding estimate: The written estimate the carrier gives to the customer in advance of the move. A nonbinding estimate is not binding on the mover. The final charges will be based upon the actual cost of the move and the services provided, although a carrier may not charge more than twenty-five percent over the nonbinding estimate.

(b) Binding estimate: The written estimate the carrier gives to the customer in advance of the move, signed by the carrier and the customer, and by which both the carrier and customer are bound. The carrier may not charge any amount other than the binding estimate and the customer must pay the amount of the binding estimate.

(c) Supplemental estimate: An amendment to the original nonbinding estimate, necessary when the circumstances of a move change in a way from the original written estimate that increases the cost of the move.

Filing: Any application, petition, tariff proposal, annual report, comment, complaint, pleading or other document submitted to the commission.

Household goods: The personal effects and property used, or to be used, in a residence when transported or arranged to be transported between residences or between a residence and a storage facility with the intent to later transport to a residence or when referenced in connection with advertising, soliciting, offering, or entering into an agreement for such transportation. Transportation of the goods must be arranged and paid for by the customer or by another individual, company or organization on behalf of the customer.

Local move: A move taking place within the limits of a city or town or moves where the shipment is transported fifty-five miles or less.

Long distance move: A move where the shipment is transported fifty-six miles or more.

Motor vehicle or **vehicle:** Any motor truck, tractor or other self-propelled vehicle, any trailer, semi-trailer or any combination of such vehicles moving as a single unit.

Permit: A document issued by the commission describing the authority granted to a household goods carrier.

Person: Any individual, firm, corporation, company, or partnership.

Shipment: A load of household goods moved by a carrier from a single residence or as a single transaction.

State: The state of Washington.

Suspension also includes **suspend, suspended, suspending:** An act by the commission to withhold temporarily a household goods carrier's authority.

Tariff: A publication containing rates and charges carriers must assess on shipments of household goods and the rules that govern how rates and charges are assessed.

[Statutory Authority: RCW 80.01.040, 80.04.160, 34.05.353, and 2009 c 94. WSR 09-24-104 (Docket TV-091038, General Order R-556), § 480-15-020, filed 12/2/09, effective 1/2/10. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-020, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-020, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-020, filed 12/15/98, effective 1/15/99.]

WAC 480-15-025 Commission proceedings. The commission's rules governing administrative practices and procedures are in chapter 480-07 WAC. When a rule in this chapter is different than a rule in chapter 480-07 WAC, the rule in this chapter applies to household goods carriers.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-025, filed 12/27/07, effective 1/27/08.]

WAC 480-15-035 Exemptions from rules. (1) The commission may grant an exemption of any rule in this chapter when doing so is consistent with the public interest, the purposes underlying regulation, and applicable statutes.

(2) To request a rule exemption, a company must file with the commission a written request identifying the rule for which an exemption is sought and giving a full explanation of the reason the exemption is requested.

(3) The commission will assign the request a docket number, if needed, and schedule the request for consideration at one of its regularly scheduled open meetings or, if appropriate under chapter 34.05 RCW, in an adjudication. The commission will notify the company requesting the exemption, and other interested persons, of the date the commission will consider the request.

(4) The commission will issue an order granting, denying, or modifying the request or setting it for hearing, pursuant to chapter 480-07 WAC.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-035, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-035, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-035, filed 6/27/00, effective 7/28/00.]

WAC 480-15-055 Payment to the commission. Carriers or other persons may pay required fees, penalties or other assessments by money order, check, certified check, credit or debit card or by electronic payment payable to the utilities and transportation commission. The commission will accept cash if a payment is made in person. The commission accepts only United States funds.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-055, filed 12/27/07, effective 1/27/08.]

Part 1.2 - Contacting the Commission

WAC 480-15-065 Address or telephone change. If a carrier changes its physical or mailing business address, e-mail address or telephone number, it must immediately notify the commission in writing at the address listed in WAC 480-07-125.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-065, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-065, filed 12/27/07, effective 1/27/08.]

Part 1.3 - Compliance with this Chapter

WAC 480-15-145 Enforcement. The commission has a number of options available to enforce its statutes, rules, orders and tariff requirements, as follows:

(1) RCW 81.04.110 allows the commission to file a complaint and hold a hearing.

(2) RCW 81.04.260 allows the commission to file in court for an immediate injunction for violations of law, commission rule, order, direction or requirement of the commission.

(3) RCW 81.04.380 allows penalties against public service companies of up to one thousand dollars for each violation for each day the violation occurs or continues to occur.

(4) RCW 81.04.387 allows penalties against corporations, other than public service companies, of up to one thousand dollars for each offense.

(5) RCW 81.04.390 provides that violations may be treated as misdemeanors.

(6) RCW 81.04.405 allows penalties of one hundred dollars for each violation for each day the violation occurs or continues to occur. These penalties are issued through a penalty assessment with a fifteen-day response period.

(7) RCW 81.04.510 allows the commission to issue cease and desist orders against a carrier operating without a permit.

(8) Section 4(5), chapter 94, Laws of 2009 (HB 1536), allows a penalty of up to ten thousand dollars per violation for any person who engages in business as a household goods carrier in violation of a cease and desist order.

(9) RCW 81.80.280 allows the commission to cancel, suspend, alter, or amend a permit for violations of federal or state law, or commission rule.

(10) Section 4(4), chapter 94, Laws of 2009 (HB 1536), allows a penalty of up to five thousand dollars to any carrier operating without a permit. If the basis for the violation is advertising, each advertisement reproduced, broadcast, or displayed via a particular medium constitutes a separate violation.

(11) RCW 81.80.355 provides that advertising without a permit may be treated as a misdemeanor.

(12) RCW 81.80.357 allows a penalty of five hundred dollars for each violation when a carrier does not include its permit number, physical address, and telephone number in its advertisements.

(13) WAC 480-120-172 allows a telecommunications company to disconnect a customer's service if that service is used for illegal purposes, such as operating without a permit issued by the commission.

[Statutory Authority: RCW 80.01.040, 80.04.160, 34.05.353, and 2009 c 94. WSR 09-24-104 (Docket TV-091038, General Order R-556), § 480-15-145, filed 12/2/09, effective 1/2/10. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-145, filed 12/27/07, effective 1/27/08.]

PART 2 - PERMITS

Part 2.1 - General Permit Information

WAC 480-15-180 Carrier operations that require a household goods permit. A carrier must receive a permit from the commission before transporting household goods, for compensation, by motor vehicle over public roads between two points within the state, or before advertising, soliciting, offering, or entering into an agreement to transport household goods.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-180, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 34.05.353, and 2009 c 94. WSR 09-24-104 (Docket TV-091038, General Order R-556), § 480-15-180, filed 12/2/09, effective 1/2/10. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-180, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-180, filed 12/15/98, effective 1/15/99.]

WAC 480-15-181 Operations that do not require a household goods permit. A company's operations do not require a permit from the commission when the company:

(1) Moves commercial or office goods, except when part of a household goods moves.

(2) Transports goods that are packed and loaded on the vehicle and unloaded by the customer.

(3) Transports goods which are loaded in customer packed and sealed self-storage type containers in conjunction with storage when no accessorial services are provided by the company.

(4) Uses a truck the customer owns or rents, even if the company does the packing and loading.

(5) Packs and loads the goods but does not transport the belongings.

(6) Moves goods interstate.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-181, filed 12/27/07, effective 1/27/08.]

WAC 480-15-185 Types of household goods permits. There are two types of household goods permits.

(1) Provisional permit: An applicant must complete a household goods moving company permit application to receive a provisional permit. A provisional permit lasts for a period of not less than six months. In determining whether to grant provisional authority, the commission will consider the criteria outlined in WAC 480-15-302.

(2) Permanent permit: Once the applicant has held a provisional permit for at least six months, the commission will consider whether to grant the applicant a permanent permit. A permanent permit has no expiration date. The applicant does not need to file a second application for permanent authority. In determining whether to grant permanent authority, the commission will consider the criteria outlined in WAC 480-15-305.

[Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-185, filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-185, filed 12/27/07, effective 1/27/08.]

WAC 480-15-186 Application required for new authority to operate as a household goods carrier. An applicant must complete a household goods moving company permit application and meet the criteria for a provisional permit and, after the provisional period has passed, meet the criteria for a permanent permit, as described in WAC 480-15-305, to receive new authority to operate as a household goods carrier.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-186, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-186, filed 6/7/12, effective 7/8/12.]

WAC 480-15-187 Transfer of an existing permit. (1) If the holder of a permit wishes to transfer the permit, the person or entity receiving the permit must complete a household goods moving company permit application on a form provided by the commission. The person or entity receiving the permit is the applicant. The applicant must meet the criteria for a provisional permit and, after the provisional period has passed, meet the criteria for a permanent permit as described in WAC 480-15-305 unless the applicant qualifies for the exceptions described in subsection (2) or (3) of this section.

(2) If the transfer is due to one of the following reasons, the commission will grant permanent authority to the applicant without requiring a provisional permit, public notice, or comment provided that the applicant is fit, willing, and able to provide service and the applicant has filed to transfer permanent authority for any one of the following reasons:

(a) A partnership has dissolved due to the death, bankruptcy or withdrawal of a partner and that partner's interest is being transferred to a spouse or to one or more remaining partners.

(b) A shareholder in a corporation has died and that shareholder's interest is being transferred to a surviving spouse or one or more surviving shareholders.

(c) A sole proprietor has died, the sole proprietor devised or bequeathed the company by will, and the applicant is seeking transfer of the permit in accordance with the bequest or devise set forth in the will.

(d) An individual has incorporated and the same individual remains the majority shareholder.

(e) An individual has added a partner but the same individual remains the majority partner.

(f) A corporation has dissolved and the interest is being transferred to the majority shareholder.

(g) A partnership has dissolved and the interest is being transferred to the majority partner.

(h) A partnership has incorporated, and the partners are the majority shareholders.

(i) Ownership is being transferred from one corporation to another corporation when both are wholly owned by the same shareholders.

(3) The commission will grant an application for permanent authority without requiring a provisional permit after the application has been published on the application docket subject to comment for thirty days if the applicant is fit, willing, and able to provide service, the applicant has filed to transfer control of permanent authority, and all of the following conditions exist:

(a) Ownership of a permit is being transferred to any shareholder, partner, family member, employee, or other person familiar with the company's operations and the household goods moving services provided.

(b) The permit has been actively used by the current owner to provide household goods moving services during the twelve-month period prior to the application.

(c) The application includes a certified statement from the applicant and the current owner explaining why the transfer is necessary to ensure the company's economic viability.

(d) The application includes a certified statement from the applicant and the current owner describing the steps taken by the parties to ensure that safe operations and continuity of service to customers is maintained.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-187, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-187, filed 6/7/12, effective 7/8/12.]

WAC 480-15-190 Service territory. Household goods permits authorize statewide operations unless:

(1) An applicant elects to limit the service territory to specific counties; or

(2) The commission, by order, limits an applicant's service territory.

[Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-190, filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-190, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-190, filed 12/15/98, effective 1/15/99.]

WAC 480-15-230 Application fees. Application fees are:

Type of Permit Application:	Fee:
Provisional and permanent authority. The fee for provisional, and then permanent, authority is a one-time fee	$550.00
Transfer of authority under WAC 480-15-187	$250.00
Permit reinstatement under WAC 480-15-450	$250.00
Name change only	$35.00

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-230, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-230, filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-230, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-230, filed 12/15/98, effective 1/15/99.]

Part 2.2 - Permanent Authority

WAC 480-15-302 Provisional authority. The commission will grant provisional authority to any applicant that meets the following criteria:

(1) The applicant has properly completed the household goods moving company permit application.

(2) The application does not contain any indication of fraud, misrepresentation, or erroneous information.

(3) The applicant has provided a copy of a valid driver's license or government-issued photo identification card for each person named in the application associated with the proposed moving company.

(4) The applicant has provided evidence that the applicant possesses sufficient financial resources to operate a moving company. The commission will accept as evidence the completed financial statement form included in the household goods moving company permit application or the alternative documents listed on the financial statement form.

(5) The applicant has met the liability and cargo insurance requirements of WAC 480-15-530 and 480-15-550.

(6) The applicant has provided evidence of compliance with state tax, labor, employment, business, and vehicle licensing laws and rules. The commission will accept valid account numbers that staff can verify, showing the applicant has established accounts with other state agencies, as evidence.

(7) The applicant has provided evidence of its enrollment in a drug and alcohol testing program, or evidence that it has in place its own drug and alcohol testing program, if required by WAC 480-15-570. The commission will accept proof of enrollment in a program, or a detailed description of the applicant's own program, as evidence.

(8) Commission staff has completed a criminal background check on each person named in the application associated with the proposed moving company.

(a) The commission will not grant provisional authority if any named person has, within the past five years, been convicted of any crime involving theft, burglary, assault, sexual misconduct, identity theft, fraud, false statements, or the manufacture, sale, or distribution of a controlled substance.

(b) If a person named in the application has been convicted of any crime involving theft, burglary, assault, sexual misconduct, identity theft, fraud, false statements, or the manufacture, sale, or distribution of a controlled substance more than five years prior to the date of the application and the commission determines that the nature or extent of the crime(s) will likely interfere with the proper operation of a household goods moving company, the commission will deny operating authority to the applicant.

(9) The applicant owns or leases the equipment necessary to provide household goods moving services.

(10) The commission has not denied a household goods moving company permit application within the previous six months filed by the same applicant or by any other person named on the application.

(11) The commission has not canceled, for cause, a permit held by the applicant, or by any other person named on the application, within the previous twelve months.

(12) The applicant has filed with the application at least three completed statements of support for the proposed service.

(13) No other circumstances exist that cause the commission to deny the application.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-302, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-302, filed 6/7/12, effective 7/8/12.]

WAC 480-15-305 Permanent authority. (1) The commission will grant permanent authority to any applicant that meets the following criteria:

(a) The applicant has met all of the criteria required for a provisional permit as described in WAC 480-15-302.

(b) The applicant has completed a provisional period of not less than six months and not more than eighteen months from the date the provisional permit was issued unless the commission determines that for good cause the provisional period should be extended beyond eighteen months. Good cause may include, among other circumstances, a carrier that has not yet made an intrastate move or a carrier that has not yet achieved a satisfactory safety rating but is making substantial progress toward a satisfactory rating.

(c) The applicant has attended a commission-sponsored household goods carrier training class.

(d) The applicant has provided commission staff with evidence that the applicant has completed a criminal background check on each person it employs or intends to employ. The commission will not grant permanent authority if any employee has, within the past five years, been convicted of any crime involving theft, burglary, assault, sexual misconduct, identity theft, fraud, false statements, or the manufacture, sale, or distribution of a controlled substance.

(e) The applicant has received a satisfactory safety rating in a safety review conducted by commission safety staff.

(f) The applicant has no outstanding commission-issued monetary penalties.

(g) The applicant has paid all outstanding fees or other amounts due to the commission.

(h) The applicant has met all other commission regulatory requirements, including any requirements set by statute, rule, tariff, or order.

(i) The applicant has no unresolved consumer complaints on file with the commission.

(j) No other circumstances exist that cause the commission to deny permanent authority.

(2) The commission will not grant permanent authority if an employee has been convicted of any crime involving theft, burglary, assault, sexual misconduct, identity theft, fraud, false statements, or the manufacture, sale, or distribution of a controlled substance more than five years prior to the date of the application and the commission determines that the nature or extent of the crime(s) will likely interfere with the proper operation of a household goods moving company.

(3) If the carrier has not completed the requirements for permanent authority within eighteen months of the date the provisional permit was issued, the commission will cancel the provisional permit and dismiss the application for permanent authority, unless the commission determines that for good cause the provisional period should be extended beyond eighteen months. Good cause may include, among other circumstances, a carrier that has not yet made an intrastate move or a carrier that has not yet achieved a satisfactory safety rating but is making substantial progress toward a satisfactory rating.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-305, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-305, filed 6/7/12, effective 7/8/12.]

Part 2.3 - Using the Permit

WAC 480-15-340 Commenting on an application for permanent authority. (1) The commission publishes applications for permanent authority in the application docket that it mails to each applicant and, upon written request, to any other person interested in application proceedings.

(2) Anyone having an interest in an application appearing on the docket may file written comments within thirty days following publication, unless the application is published in conjunction with a grant of provisional authority. If the permanent authority application is published in conjunction with a grant of provisional authority, then comments will be accepted for one hundred eighty days or the full term of the provisional permit.

(3) Comments may either support or protest the application. Comments must include the commenter's full name, address, telephone number, e-mail address, fax number, and permit number, if available. Comments must be signed and indicate the place and date when they were signed. Comments must indicate support for, or protest of, the permanent authority for any one or more of the following reasons:

(a) Fitness.

(b) Public interest.

(c) Levels of service.

(d) Business practices.

(e) Safety.

(f) Operation of equipment.

(g) Current or future public need for service.

(4) A comment protesting an application will not, on its own, cause the commission to set the matter for a hearing.

[Statutory Authority: RCW 80.01.040, 81.04.160, and 81.80.075. WSR 12-13-007 (Docket TV-111493, General Order R-565), § 480-15-340, filed 6/7/12, effective 7/8/12. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-340, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-340, filed 12/15/98, effective 1/15/99.]

WAC 480-15-350 Setting an application for hearing. The commission may hold a hearing or brief adjudicative proceeding on any application for permanent authority if it is necessary to resolve outstanding issues or concerns related to fitness, public interest, public convenience and necessity or any other issue resulting from a compliance review, audit, inspection report, complaint or public comment. See chapter 480-07 WAC for rules governing hearings and brief adjudicative proceedings.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-350, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-350, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-350, filed 12/15/98, effective 1/15/99.]

WAC 480-15-360 Retaining copies of the permit. Carriers must keep the original permit in their main office and carry a copy in each vehicle used to transport household goods. Carriers must show a copy of the permit to any law enforcement or compliance officer who asks to see it.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-360, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-360, filed 12/15/98, effective 1/15/99.]

WAC 480-15-370 Lost or destroyed permit. Carriers may write to the commission and request replacement of a lost or destroyed permit. The commission will issue a replacement permit at no charge.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-370, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-370, filed 12/15/98, effective 1/15/99.]

WAC 480-15-380 Allowing others to use permit authority. Intrastate carriers may not allow others to transport household goods under their permit authority. Only the lawful permit holder may conduct operations under a household goods permit. Carriers may not lease permit authority, but may lease vehicles from others for use in their own operations pursuant to the leasing rules in WAC 480-15-590 and 480-15-600.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-380, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-380, filed 12/15/98, effective 1/15/99.]

WAC 480-15-390 Permit names or trade names. (1) A carrier must conduct operations under the exact name shown on its household goods permit. If a carrier does business under a trade or assumed name, that name must also appear on the permit.

(2) A carrier may not operate under a name that is similar to another carrier unless one of the following conditions applies:

(a) The carrier whose name is similar has given written permission to use the name.

(b) The commission authorizes use of the similar name. Before authorizing use of a similar name, the commission must first determine that the use of the similar name will not mislead the shipping public or result in unfair or destructive competitive practices.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-390, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-390, filed 12/15/98, effective 1/15/99.]

WAC 480-15-400 Changing the name on a permit. (1) Carriers must file a name change application to change the name on a permit, to add a trade name to the permit, or remove a trade name from the permit.

(2) Carriers must include the application fee (as shown in WAC 480-15-230), copies of any corporate minutes authorizing the name change and proof that the carrier has properly registered the new name with the department of licensing, office of the secretary of state or other agencies as may be required.

(3) Carriers must also submit to the commission a Uniform Motor Carrier Bodily Injury and Property Damage Liability Certificate of Insurance (Form E) or Uniform Motor Carrier Bodily Injury and Property Damage Liability Surety Bond (Form G) in its changed name and proof of required cargo insurance (Certificate of Liability Insurance or Form H Uniform Motor Carrier Cargo Certification of Insurance) in its changed name.

(4) Carriers must file an application to transfer permanent authority if the name change is the result of a change in ownership or controlling interest.

(5) Carriers may not advertise or operate under the proposed name change until the commission approves the application.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-400, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-400, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-400, filed 12/15/98, effective 1/15/99.]

WAC 480-15-410 Voluntary suspension of a permit. (1) If a carrier is unable to use its permit due to medical reasons or because of active military service, it may request the authority be voluntarily suspended.

(2) The carrier must send its request to the commission in writing and include the following information:

(a) Name, address, and permit number.

(b) The reason for the request (e.g., medical statement, military orders).

(c) The date voluntary suspension is requested to begin.

(d) The length of time the carrier will be unable to use the permit.

(e) A statement that no household goods transportation will occur under the permit while it is suspended.

(3) The commission will issue an order suspending the permit. The order will set the length of time and the terms of suspension.

(4) To activate a suspended permit, a carrier must send the commission a letter advising that it is ready to resume household goods service and agree to conduct operations in compliance with all laws and rules. The carrier must satisfy any outstanding filing requirements before the commission will issue an order lifting the suspension.

(5) If the carrier does not activate the permit before the suspension period expires, the commission may cancel the permit.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-410, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-410, filed 12/15/98, effective 1/15/99.]

WAC 480-15-420 Voluntary cancellation of a permit. If a carrier no longer wants to use its permit, the carrier may send the commission a written request that it be canceled. The cancellation request must include the carrier's name, address and permit number. The commission will issue an order canceling the permit.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-420, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-420, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-420, filed 12/15/98, effective 1/15/99.]

Part 2.4 - Suspended and Canceled Permits

WAC 480-15-430 Involuntary suspension of a permit. (1) The commission may suspend a permit without the carrier's authorization for good cause. Good cause includes, but is not limited to, the carrier:

(a) Failing to maintain evidence of required cargo insurance coverage for all areas of its operations as required by WAC 480-15-550.

(b) Failing to maintain evidence of required liability insurance coverage for all areas of its operations as required by WAC 480-15-530.

(c) Failing to comply with the rates and rules contained in the commission-published tariff.

(d) Failing or refusing to comply with applicable laws and commission rules pertaining to operations of household goods carriers, including safety requirements set in law or rule.

(e) Allowing others to transport goods under the carrier's permit authority.

(f) Committing fraud.

(g) Failing to meet the requirements of WAC 480-15-555, Criminal background checks for prospective employees.

(2) The commission may suspend a permit without an opportunity for hearing if there is imminent danger to the public health, safety or welfare and there is insufficient time to conduct a hearing.

(3) The commission will send the carrier notice of its action to suspend the carrier's permit. The suspension begins on the effective date listed in the notice.

(4) A carrier may contest the suspension of its permit by requesting a hearing or brief adjudicative proceeding. Chapter 480-07 WAC describes the procedures for such hearings.

(5) The commission will lift the suspension of the permit after the carrier corrects all conditions leading to the suspension.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-430, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-430, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-430, filed 12/15/98, effective 1/15/99.]

WAC 480-15-450 Involuntary cancellation of a permit. (1) The commission may cancel a permit without the carrier's authorization for good cause. Good cause includes, but is not limited to, the carrier:

(a) Failing to file an annual report or pay required regulatory fees.

(b) Failing to correct, within the time frame specified in the suspension order, all conditions that led to the suspension of a permit.

(c) Failing to maintain evidence of required liability insurance coverage for all areas of its operations as required by WAC 480-15-530.

(d) Failing to maintain evidence of required cargo insurance coverage for all areas of its operations as required by WAC 480-15-550.

(e) Failing to comply with applicable laws and commission rules pertaining to operations of household goods carriers, including safety requirements set in law or rule.

(f) Failing to supply information necessary to the commission for the performance of its regulatory functions when the commission requests the carrier to do so.

(g) Submitting false, misleading or inaccurate information.

(h) Allowing others to transport goods under the carrier's permit authority.

(i) Operating in a manner that constitutes unfair or deceptive business practices.

(j) Committing fraud.

(k) Failing to meet the requirements of WAC 480-15-555, Criminal background checks for prospective employees.

(2) The commission will hold a hearing prior to canceling a permit unless the permit is subject to cancellation because the carrier:

(a) Failed to maintain evidence of current liability insurance as required by WAC 480-15-530 or failed to maintain evidence of current cargo insurance as required by WAC 480-15-550 and an adjudication or brief adjudication was held or was available to the carrier.

(b) Failed to correct causes of a suspension in which an adjudication or brief adjudication was held or was available to the carrier.

(3) When the commission has canceled a household goods carrier permit, the carrier must, when directed by the commission, provide notice to every customer that its permit has been canceled, and provide proof of such notice to the commission.

(4) If the permit is canceled and the carrier corrects all conditions that led to cancellation of the permit, the carrier may apply for reinstatement.

(a) To reinstate the permit within thirty days of cancellation, the carrier must file an application for reinstatement and pay the applicable reinstatement fees as stated in WAC 480-15-230.

(b) If the carrier files an application for reinstatement after thirty days of cancellation, the application will be considered in all aspects to be an application for new authority and will be subject to all terms and conditions specified in WAC 480-15-302 for new entrants.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-450, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 34.05.353, and 2009 c 94. WSR 09-24-104 (Docket TV-091038, General Order R-556), § 480-15-450, filed 12/2/09, effective 1/2/10. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-450, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-450, filed 12/15/98, effective 1/15/99.]

PART 3 - ADMINISTRATIVE, TARIFF, AND RATE REQUIREMENTS TO TRANSPORT HOUSEHOLD GOODS, FOR HIRE, WITHIN THE STATE OF WASHINGTON

Part 3.1 - Annual Reports and Regulatory Fees

WAC 480-15-480 Annual reports and regulatory fees. (1) An annual report is a year end statement that discloses information to the commission about regulated companies.

(a) Carriers must report information as required in the annual report forms.

(b) The commission will mail annual report forms and instructions to each household goods permit holder at its address of record. If a carrier does not receive an annual report form, it is the carrier's responsibility to contact the commission and request the form.

(2) A regulatory fee is an annual assessment paid by each household goods carrier to cover the costs of regulating the household goods industry. The commission reviews the costs of regulating the industry and sets fees proportionate to costs, although not above the maximum amount allowed by law.

(3) Regulatory fees are calculated as a percentage of intrastate gross operating revenues generated from the transportation of household goods during the prior calendar year. For example:

Gross operating revenue	$100,000
Times the regulatory fee percentage	.0025
Equals the regulatory fee due	$250

(4) Carriers must file annual reports and pay regulatory fees by May 1st of each year based on the prior year's operations. The commission must receive both the annual report and the regulatory fee payment no later than May 1.

(a) The commission will assess an automatic late fee of two percent of the amount due, plus one percent interest for each month after that, for any regulatory fees not received by May 1.

(b) The commission may issue penalty assessments or cancel a carrier's permit for failure to pay regulatory fees or file annual reports.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-480, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-480, filed 12/15/98, effective 1/15/99.]

Part 3.2 - Tariff and Rates

WAC 480-15-490 Tariff and rates, general. (1) A tariff is a publication containing the rates and charges that household goods carriers must assess on shipments of household goods, including rules that govern how rates and charges are assessed.

(2) The commission publishes tariffs that all household goods carriers must use and allows household goods carriers to file individual tariffs if the commission finds it is impractical to include certain commodities or services in its tariff.

(3) All household goods carriers are required to follow the terms, conditions, rates and all other requirements imposed by the commission-published tariff.

(4) The commission will set minimum and maximum rates carriers may charge within the tariff.

(5) Every household goods permit holder must obtain at least one copy of the current tariff, and may pay applicable tariff maintenance fees. Any interested person may purchase a copy by paying the applicable fees in advance.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-490, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-490, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-490, filed 12/15/98, effective 1/15/99.]

WAC 480-15-500 Tariff maintenance and fees. (1) The commission may charge tariff maintenance fees on an annual basis.

(2) The commission may bill any applicable tariff maintenance fees by December 1 of each year. When billed, companies and other tariff subscribers must pay the bill by December 31.

(a) If a tariff subscriber does not have a permit and fails to pay the billed maintenance fee by December 31, the commission may cancel the tariff subscription. To reinstate a subscription, the tariff subscriber must obtain a new original copy of the tariff and pay all applicable maintenance fees.

(b) If a tariff subscriber has a permit and fails to pay billed tariff fees by December 31, the commission may take administrative action against the household goods carrier to suspend or cancel the permit, or to assess penalties.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-500, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-500, filed 12/15/98, effective 1/15/99.]

WAC 480-15-510 Changing commission-published tariffs. (1) Companies holding temporary or permanent household goods authority may propose changes to the tariff. In addition, the commission may, on its own motion, propose tariff changes.

(2) Companies must send all proposed changes to the commission's mailing address. Proposed changes must meet all of the following:

(a) Be in writing.

(b) Identify the tariff item to be changed.

(c) Fully describe the proposed change.

(d) State clearly the reason(s) for the proposed change.

(e) Include any information or documents that justify the proposed change (the person proposing the change must prove the change is just and reasonable).

(f) Identify the name, address, title, telephone number, e-mail address, permit number and fax number (if any) of the person the commission should contact regarding the proposal.

(3) When the commission receives a proposed tariff change, it will:

(a) Assign a docket number.

(b) Schedule each docketed proposal for tariff change for consideration at a regularly scheduled open public meeting.

(c) Notify other interested persons of the date when it will consider the tariff change.

(d) If the application for tariff change is suspended, the commission will process the application under the procedures set forth in chapter 480-07 WAC.

(4) Approved changes are not effective until the commission publishes and distributes a revised tariff page with a stated effective date.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-510, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-510, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-510, filed 12/15/98, effective 1/15/99.]

WAC 480-15-520 Individual carrier tariffs. (1) To file an individual tariff or to amend an approved individual tariff already on file with the commission, a carrier must submit all of the following:

(a) A cover letter requesting permission to publish and file an individual tariff. The letter must describe the reasons the carrier believes permission should be granted. The letter should state the reasons it is impractical for the commission to publish a tariff for the commodities or services contained in the proposed tariff.

(b) Two copies of the proposed tariff. The proposed tariff must comply with the tariff drafting standards in chapter 480-149 WAC.The proposed tariff must contain all rates, charges, and rules the company will use if granted approval to publish and file an individual tariff.

(c) Data showing that the rates and charges contained in the proposed tariff are fair, just, reasonable and sufficient.

(2) When an individual carrier filed tariff is approved, the commission will issue an order stating the date on which the rates become effective. The commission will return one copy of the tariff marked "approved" to the company.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-520, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040 and 80.04.160. WSR 03-24-028 (General Order R-510, Docket No. A-010648), § 480-15-520, filed 11/24/03, effective 1/1/04. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-520, filed 12/15/98, effective 1/15/99.]

Part 3.3 - Insurance

WAC 480-15-530 Public liability and property damage insurance. (1) Before operating under a household goods permit, carriers must have public liability and property damage insurance covering every motor vehicle used in its operations. The commission will not issue a permit for authority to operate without acceptable proof of required insurance coverage. Carriers must maintain the required public liability and property damage insurance at all times for every motor vehicle used in Washington intrastate operations.

(a) The policy must be written by an insurance company authorized to write insurance in Washington state.

(b) The policy must include the Uniform Motor Carrier Bodily Injury and Property Damage Liability Certificate of Insurance (Form E) or Uniform Motor Carrier Bodily Injury and Property Damage Liability Surety Bond (Form G).

(c) The commission may suspend or cancel the permit of any carrier operating without proof of required insurance coverage.

(2) The minimum limits of required public liability and property damage insurance for motor vehicles operated by household goods carriers are as follows:

(a) At least three hundred thousand dollars in combined single limit coverage for motor vehicles with a gross vehicle weight rating of less than ten thousand pounds.

(b) At least seven hundred fifty thousand dollars in combined single limit coverage for motor vehicles with a gross vehicle weight rating of ten thousand pounds or more.

(3) Carriers must file a Uniform Motor Carrier Bodily Injury and Property Damage Liability Certificate of Insurance (Form E) or Uniform Motor Carrier Bodily Injury and Property Damage Liability Surety Bond (Form G) as a condition of maintaining a household goods permit.

(a) The Form E or Form G filing must be issued in exactly the same name as the carrier's permit.

(b) The Form E or Form G filing must be continuous, until canceled by a Notice of Cancellation (Form K) filed with the commission no less than thirty days before the cancellation effective date.

(4)(a) The commission will accept an insurance certificate or binder for up to sixty days. A certificate or binder may be canceled by filing written notice with the commission at least ten days before the cancellation effective date. A certificate or binder must be replaced by a Form E or Form G within sixty days of filing, or before the expiration date, whichever occurs first.

(b) Certificates or binders must include all of the following:

(i) The commission as the named certificate holder.

(ii) The carrier's name, exactly as it appears on the permit or application, as the insured.

(iii) The insurance company name.

(iv) The insurance policy number.

(v) The effective and expiration dates.

(vi) The insurance limits of coverage.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-530, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-530, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-530, filed 12/15/98, effective 1/15/99.]

WAC 480-15-550 Cargo insurance. (1) Carriers must have cargo insurance coverage at the levels prescribed in subsection (2) of this section to protect all household goods transported under the permit. The commission will not issue a permit for authority to operate without acceptable proof of required cargo insurance coverage.

(2) The minimum limits of required cargo insurance are:

(a) Ten thousand dollars for household goods transported in motor vehicles with a gross vehicle weight rating of less than ten thousand pounds.

(b) Twenty thousand dollars for household goods transported in motor vehicles with a gross vehicle weight rating of ten thousand pounds or more.

(3) Carriers must provide proof of required cargo insurance (Certificate of Liability Insurance or Form H Uniform Motor Carrier Cargo Certification of Insurance) when they apply for a permit. In addition, carriers must have proof of cargo insurance at their main office available for inspection by commission representatives.

(4) The commission may suspend or cancel the permit of any carrier operating without required cargo insurance coverage.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-550, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-550, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-550, filed 12/15/98, effective 1/15/99.]

WAC 480-15-555 Criminal background checks for prospective employees. (1) Each carrier must complete a criminal background check for every person the carrier intends to hire.

(2) The carrier must keep evidence that it has completed a criminal background check for every person the carrier intends to hire for as long as that person is employed and for three years thereafter.

(3) No carrier may hire a person who has been convicted of any crime involving theft, burglary, assault, sexual misconduct, identity theft, fraud, false statements, or the manufacture, sale, or distribution of a controlled substance within the past five years.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-555, filed 11/15/13, effective 12/16/13.]

PART 4 - EQUIPMENT AND SAFETY REQUIREMENTS

Part 4.1 - Equipment

WAC 480-15-560 Equipment safety requirements. (1) All carriers must comply with all of the following requirements:

(a) Maintain all vehicles in a safe and sanitary condition.

(b) Maintain vehicles free of defects likely to result in an accident or breakdown.

(c) Maintain vehicles consistent with the *North American Uniform Out-Of-Service Criteria* as adopted in WAC 480-15-999.

(d) Make vehicles available for inspection by commission representatives at any time upon request.

(2) A household goods carrier must display its permit name and number, as registered with the commission, on both the driver and passenger doors of all power units.

(a) All markings on the power unit must be:

(i) Clearly legible.

(ii) No less than three inches high.

(iii) In a color that contrasts with the background color.

(iv) Permanent. *Exception*: Carriers may use temporary markings on vehicles operated under a lease.

(b) Carriers with both intrastate and interstate authority must display either the commission permit number, federal permit number or both on the power unit.

(3) Carriers must comply with all of the following requirements:

(a) All state and local motor vehicle safety laws and rules including, but not limited to, those contained in this chapter.

(b) The following parts of Title 49 of the Code of Federal Regulations (49 C.F.R.), as adopted by reference in this chapter on the date specified in WAC 480-15-999:

(i) 49 C.F.R. Part 390: Safety Regulations, General; except the following definitions will apply:

(A) Exempt motor carrier: Any person operating a motor vehicle exempt from certain provisions of RCW Title 81 as defined in RCW 81.80.040.

(B) Motor carrier: Any common carrier, exempt carrier and private carrier as defined in WAC 480-15-020.

(C) Motor vehicle: Any vehicle, machine, tractor, trailer or semi-trailer propelled or drawn by mechanical power, or any combination of such vehicles, used on the public roads to transport household goods.

(D) Private carrier: Persons who transport their own household goods, transport household goods bought or sold by them or transport household goods purely as an incidental adjunct to an established business.

(E) Commercial motor vehicle: Any motor vehicle used by a household goods carrier to transport household goods, if either the vehicle has a gross vehicle weight rating or gross combination weight rating of ten thousand one pounds or more or if the gross vehicle weight or gross combination weight is ten thousand one pounds or more.

(F) Director: The commission.

(ii) 49 C.F.R. Part 392: Driving of Commercial Motor Vehicles.

(iii) 49 C.F.R. Part 379: Preservation of Records.

(iv) 49 C.F.R. Part 385: Safety Fitness Procedures.

(v) 49 C.F.R. Part 397: Transportation of Hazardous Materials.

(vi) 49 C.F.R. Part 393: Parts and Accessories Necessary for Safe Operation.

(vii) 49 C.F.R. Part 396: Inspection, Repair, and Maintenance.

(viii) 49 C.F.R. Part 375: Transportation of Household Goods in Interstate Commerce; Consumer Protection Regulations. However, 49 C.F.R. Part 375 does not apply to intrastate operations. 49 C.F.R. Part 375 applies only to interstate operations.

(ix) 49 C.F.R. Part 380: Special Training Requirements.

(c) All motor vehicles must be equipped with mud flaps which effectively reduce the spray or splash of water from the road.

(d) Mud flaps must be as wide as the tires on which they are mounted, and must extend from the top of the tires down to at least the center of the axle.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.353. WSR 11-04-041 (Docket A-101466, General Order R-562), § 480-15-560, filed 1/25/11, effective 2/25/11. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-560, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.310. WSR 01-20-061 (Docket No. A-010827, General Order No. R-491), § 480-15-560, filed 9/28/01, effective 10/29/01. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-560, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-560, filed 12/15/98, effective 1/15/99.]

Part 4.2 - Drivers' Requirements

WAC 480-15-570 Driver safety requirements. (1) No household goods carrier shall employ or allow any driver to operate a motor vehicle who fails to meet minimum criteria related to all of the following requirements:

(a) All state and local laws and rules governing driver safety, including, but not limited to, the rules in this chapter.

(b) The *North American Uniform Out-Of-Service Criteria* as adopted in WAC 480-15-999.

(c) The following parts of Title 49 of the Code of Federal Regulations (49 C.F.R.), as adopted by reference in this chapter on the date specified in WAC 480-15-999:

(i) 49 C.F.R. Part 390: Safety Regulations, General; except the following definitions will apply:

(A) Exempt motor carrier: Any person operating a motor vehicle exempt from certain provisions of RCW Title 81 as defined in RCW 81.80.040.

(B) Motor carrier: Any common carrier, exempt carrier and private carrier as defined in WAC 480-15-020.

(C) Motor vehicle: Any vehicle, machine, tractor, trailer or semi-trailer propelled or drawn by mechanical power, or any combination of such vehicles, used on the public roads to transport household goods.

(D) Private carrier: Persons who transport their own household goods, transport household goods bought or sold by them or transport household goods purely as an incidental adjunct to an established business.

(E) Commercial motor vehicle: Any motor vehicle used by a household goods carrier to transport household goods, if either the vehicle has a gross vehicle weight rating or gross combination weight rating of ten thousand one pounds or more or if the gross vehicle weight or gross combination weight is ten thousand one pounds or more.

(F) Director: The commission.

(ii) 49 C.F.R. Part 382: Controlled Substance and Alcohol Use and Testing.

(iii) 49 C.F.R. Part 383: Commercial Driver's License Standards; Requirements and Penalties.

(iv) 49 C.F.R. Part 391: Qualification of Drivers.

(v) 49 C.F.R. Part 395: Hours of Service of Drivers.

(vi) 49 C.F.R. Part 40: Procedures for Transportation Workplace Drug and Alcohol Testing Programs.

(vii) 49 C.F.R. Part 385: Safety Fitness Procedures.

(viii) 49 C.F.R. Part 397: Transportation of Hazardous Materials.

(ix) 49 C.F.R. Part 375: Transportation of Household Goods in Interstate Commerce; Consumer Protection Regulations.

(x) 49 C.F.R. Part 380: Special Training Requirements.

(2) Operations that are exclusively intrastate commerce are not subject to the following provisions:

(a) 49 C.F.R. Part 391.11 (b)(1): Minimum age requirements. The minimum age for drivers of motor carriers operating solely intrastate is eighteen years of age rather than the twenty-one years of age required to operate in interstate commerce.

(b) 49 C.F.R. Part 391.49: Waiver of certain physical defects. This part does not apply if the driver has obtained from the Washington department of licensing a driver's license with endorsements and/or restrictions allowing operation of the motor vehicle they are driving.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.353. WSR 11-04-041 (Docket A-101466, General Order R-562), § 480-15-570, filed 1/25/11, effective 2/25/11. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-570, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.310. WSR 01-20-061 (Docket No. A-010827, General Order No. R-491), § 480-15-570, filed 9/28/01, effective 10/29/01. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-570, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-570, filed 12/15/98, effective 1/15/99.]

Part 4.3 - Equipment Leasing

WAC 480-15-590 Leasing vehicles. A carrier must enter into an equipment lease agreement before operating a leased motor vehicle. The carrier must ensure that all of the following conditions are met:

(1) The carrier signs the form and ensures the lessor signs the form.

(2) The carrier marks "master lease" if the carrier intends to use a master lease instead of individual leases.

(3) A copy of the lease is carried in all leased motor vehicles.

(4) Copies of all leases are kept in the carrier's permanent files for at least one year after the lease expires.

(5) The carrier gives a copy of the lease to the owner of the leased motor vehicle.

(6) The carrier takes possession, control and use of the motor vehicle during the period of the lease agreement.

(7) The leased motor vehicle is properly insured as specified in WAC 480-15-530 and 480-15-550.

(8) The carrier properly identifies the motor vehicle as specified in RCW 81.80.305.

(9) The carrier charges appropriate tariff rates and charges.

(10) The driver of the leased motor vehicle is on the carrier's payroll during the leased period.

(11) The leased motor vehicle is operated in compliance with laws and rules as specified in WAC 480-15-560 and 480-15-570.

(12) The driver of the leased motor vehicle is subject to the company's alcohol and controlled substance policies.

(13) The carrier and the owner of the leased motor vehicle specify on the lease form who is responsible for all expenses relating to the leased motor vehicles.

(14) The carrier complies with the terms of the lease.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-590, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-590, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-590, filed 12/15/98, effective 1/15/99.]

PART 5 - CARRIER'S RESPONSIBILITIES TO SHIPPERS

Part 5.1 - General Responsibilities

WAC 480-15-610 Advertising. (1) Carriers must include the commission-issued permit number, name or trade name as recorded at the commission, physical address and telephone number in any advertising for household goods moving services. Advertising includes, but is not limited to:

(a) Advertisements in telephone books, newspapers, correspondence, cards, or any other written document.

(b) Signs, posters or similar displays.

(c) Web sites or other online advertising.

(2) Advertisements may not be misleading, false or deceptive.

(3) Radio or television advertising need not contain the carrier's permit number if the carrier provides its permit number, physical address, and telephone number to the person selling the advertisement and it is recorded in the advertising contract.

(4) Carriers may advertise services provided as an agent of, or connecting carrier to, another household goods carrier if they include the name and permit number of the other household goods carrier in their advertising.

(5) No person may falsify a permit number or use a false or inaccurate permit number in connection with any advertisement, solicitation or any form of identification as an authorized household goods carrier.

(6) Carriers may not advertise services or rates and charges that conflict with those in the tariff.

[Statutory Authority: RCW 80.01.040, 80.04.160, 34.05.353, and 2009 c 94. WSR 09-24-104 (Docket TV-091038, General Order R-556), § 480-15-610, filed 12/2/09, effective 1/2/10. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-610, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-610, filed 12/15/98, effective 1/15/99.]

WAC 480-15-620 Information household goods carriers must provide to customers. (1) Carriers must give each customer a copy of the commission publication, "*Consumer Guide to Moving in Washington State*" at the time the carrier gives the customer a written estimate.

(2) The language contained in the publication is prescribed by the commission and may not be changed by the carrier.

(3) The commission will provide carriers the prescribed language but will not provide copies of the publication. Carriers are responsible for making sufficient copies for their needs.

(4) Carriers may access the prescribed language through the commission's web site at www.utc.wa.gov or by contacting the commission at 360-664-1222.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-620, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-620, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-620, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-620, filed 12/15/98, effective 1/15/99.]

Part 5.2 - Estimates

WAC 480-15-630 Estimates. Every carrier is required to provide a written estimate to every customer prior to moving a shipment of household goods and must issue a written supplemental estimate when required by commission rule or tariff. The carrier must provide estimates by following the requirements set in the commission-published tariff covering household goods movers. The initial estimate may be a binding or nonbinding estimate.

(1) A binding estimate is the promise of a guaranteed cost of a move from the carrier to the customer. The carrier is bound to charge only the amount of the estimate and no more.

(2) A nonbinding estimate is an estimate of the amount the carrier will charge to move a customer's household goods. The customer may pay charges in excess of the estimate.

(3) A supplemental estimate is in addition to any other estimate. A supplemental estimate is required if the circumstances surrounding the move change in a way that causes rates or charges to increase. The customer must accept and sign the supplemental estimate prior to additional work being performed.

(4) A carrier may provide the hourly rate it charges and the amount of time it believes it will take to make the move. A carrier may provide the rate per unit of weight it charges and the total weight it believes a shipment weighs. However, the carrier must provide a written binding or nonbinding estimate before making the move.

(5) A carrier may not conduct a move until it has visually inspected the goods to be shipped, unless the customer completes a web site calculation or hard-copy calculation sheet as described in subsection (6) of this section, and the carrier has provided a written binding or nonbinding estimate to the customer.

(6) A carrier may provide an estimate based on a customer-completed web site calculation or customer completed hard-copy calculation sheet if:

(a) The estimate contains all of the elements required by the tariff.

(b) The customer electronically "signs" the information provided on the web site by entering the customer's name and the date the information was filled out on the screen. The date must be present and must be entered by the customer.

(c) The carrier provides the customer with a current copy of the commission publication, "*Consumer Guide to Moving in Washington State.*"

(d) The estimate discloses at the web site or on the hard-copy calculation sheet that:

(i) The estimate is not binding.

(ii) The cost of the move may exceed the estimate.

(iii) The customer will be required to pay up to one hundred ten percent of the estimate upon delivery. Carriers must allow customers at least thirty days from the date of delivery to pay amounts in excess of the one hundred ten percent.

(iv) The customer is not required to pay more than one hundred twenty-five percent of the estimate regardless of the total cost unless the carrier issues and the customer accepts a supplemental estimate.

(7) The carrier must complete the estimates as required by tariff.

(8) All written estimates must be signed and dated by both the carrier and customer prior to the move. If the carrier completes the estimate on the day of the move, the carrier may not charge the customer for travel time to the point of origin or the time spent completing the estimate.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-630, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-630, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-630, filed 12/15/98, effective 1/15/99.]

WAC 480-15-660 Supplemental estimates. (1) Carriers must provide a written supplemental estimate if the circumstances surrounding the move change in any way to cause the rates or charges to increase.

(2) When providing a supplemental estimate, a carrier may not apply a higher rate to the articles and services identified in the original estimate. A carrier may choose to use a higher rate for new services or additional articles not included in the original estimate.

(3) The carrier must complete the supplemental estimate as required by tariff.

(4) The carrier and the customer must sign the supplemental estimate prior to the additional work being performed.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-660, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160, 81.04.250, 81.28.040, 81.80.090, 81.80.120, 81.80.130, 81.80.290, 81.80.211, and 80.01.040. WSR 00-14-010 (General Order No. R-471, Docket No. TV-991559), § 480-15-660, filed 6/27/00, effective 7/28/00. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-660, filed 12/15/98, effective 1/15/99.]

Part 5.3 - Bills of Lading

WAC 480-15-710 Bill of lading. (1) A bill of lading is a shipping document issued by the household goods carrier, signed by both the customer and the household goods carrier that establishes a legal contract with terms and conditions for a shipment of household goods.

(2) The carrier must issue a bill of lading for each shipment of household goods it transports and must give the customer a completed copy of the bill of lading used for the customer's shipment.

(3) The carrier must include the information in a bill of lading as described in the commission's tariff.

(4) The carrier must keep the bill of lading and all associated documents for three years from the date the move was completed.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-710, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-710, filed 12/15/98, effective 1/15/99.]

Part 5.4 - Weight of Shipment

WAC 480-15-750 Weight. Carriers must follow the requirement of the tariff as it applies to weight of the shipment.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-750, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-750, filed 12/15/98, effective 1/15/99.]

Part 5.5 - Complaint and Claim Procedures

WAC 480-15-800 Customer complaints and claims. If a customer is not satisfied with the carrier's service:

(1) The carrier must provide the customer with all information and forms necessary to file a complaint or claim.

(2) The customer must file any and all claims for loss or damage within nine months from the actual delivery date. In the case of failure to make delivery, the claim must be filed within nine months after the originally scheduled delivery date.

(3) Claims must contain sufficient information to identify the property involved. A copy of the bill of lading must accompany the claim.

(4) The customer must pay all proper charges for the move prior to filing a claim for loss or damage.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-800, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-800, filed 12/15/98, effective 1/15/99.]

WAC 480-15-810 Resolving customer complaints or claims. When the carrier receives a complaint or claim, it must:

(1) Notify the customer, in writing, within ten business days that it has received the claim or complaint and advise the customer of the availability of the commission for further review by providing the commission's toll-free number and mailing address: 1-800-562-6150; P.O. Box 47250, Olympia, Washington 98504-7250.

(2) Investigate the complaint or claim.

(3) Advise the customer of the resolution of the complaint or claim in writing.

(4) If it is a loss or damage claim, pay the claim, refuse the claim, or make a compromise offer within ninety days.

(a) If the carrier cannot resolve a loss or damage claim within ninety days, it must, for each thirty-day period thereafter until the claim is settled, inform the customer, in writing, of the reason it failed to resolve the claim or clearly state its final offer or denial and close the claim and advise the customer of the availability of the commission for further review by providing the commission's toll-free number and mailing address: 1-800-562-6150; P.O. Box 47250, Olympia, Washington 98504-7250.

(b) Maintain a copy of the written correspondence required in (a) of this subsection in the complaint or claim file for three years, as directed by WAC 480-15-830.

(5) The carrier may satisfy any claim by reimbursing the customer or repairing or replacing the property lost or damaged with materials of like kind, quality, and condition.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-810, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-810, filed 12/15/98, effective 1/15/99.]

WAC 480-15-830 Complaint and claim records retention. Carriers must keep all records and papers relating to complaints or claims for three years after the date the complaint or claim is resolved. Carriers must include, at a minimum, the following information in a claim or complaint file:

(1) The date the claim or complaint was received.

(2) The name, address and telephone number of the customer.

(3) Detailed information about the dispute.

(4) Details of any action the carrier has taken in response to the claim or complaint.

(5) The date the claim or complaint was resolved and a description of the final resolution.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-830, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-830, filed 12/15/98, effective 1/15/99.]

WAC 480-15-890 Commission-referred complaints. When commission staff refers a customer complaint to a carrier, the carrier must:

(1) Provide its initial response to commission staff within five business days from the date commission staff referred the complaint to the carrier. The carrier's response must include the results of its investigation into the informal complaint and any document related to the move requested by staff. The carrier may request and commission staff may allow, if warranted, an extension to the initial response due date.

(2) Respond to commission staff inquiries requesting additional information or documentation relevant to the informal complaint within five business days.

(3) Keep commission staff currently informed of any progress made in resolving a claim for loss or damages not resolved within the first ninety-day period of the claim by informing staff in writing, for each thirty-day period thereafter, of the reason for failure to resolve the claim.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-890, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-890, filed 12/15/98, effective 1/15/99.]

PART 6 - INTERSTATE OPERATIONS

WAC 480-15-900 Requirements for interstate operations. General requirements: No household goods carrier may operate any motor vehicle or combination of motor vehicles over the public roads of this state in interstate commerce unless the carrier has met all of the following requirements:

(1) Obtained the appropriate operating authority from the U.S. Department of Transportation Federal Motor Carrier Safety Administration (FMCSA) or its successor agency.

(2) Obtained valid insurance as required by FMCSA.

(3) Participated in any program administered by the commission for registering, paying fees or otherwise regulating interstate motor freight carriers as provided by FMCSA or its successor agency.

[Statutory Authority: RCW 80.01.040, 81.01.010, 81.04.160, and 81.80.130. WSR 13-23-048 (Docket TV-130079, General Order R-573), § 480-15-900, filed 11/15/13, effective 12/16/13. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.250, 81.28.040, 81.80.120, 81.80.130 and 81.80.290. WSR 08-02-049 (Docket TV-070466, General Order R-547), § 480-15-900, filed 12/27/07, effective 1/27/08. Statutory Authority: RCW 81.04.160 and 80.01.040. WSR 99-01-077 (Order R-454, Docket No. TV-971477), § 480-15-900, filed 12/15/98, effective 1/15/99.]

WAC 480-15-999 Adoption by reference. In this chapter, the commission adopts by reference all or portions of regulations and standards identified below. They are available for inspection at the commission branch of the Washington state library. The publications, effective dates, references within this chapter, and availability of the resources are as follows:

(1) ***North American Standard Out-of-Service Criteria*** (OOSC) is published by the Commercial Vehicle Safety Alliance (CVSA).

(a) The commission adopts the version in effect on April 1, 2016.

(b) This publication is referenced in WAC 480-15-560 (Equipment safety requirements).

(c) The *North American Out-of-Service Criteria* is a copyrighted document. Copies are available from CVSA.

(2) **Title 49 Code of Federal Regulations,** cited as 49 C.F.R., including all appendices and amendments is published by the United States Government Printing Office.

(a) The commission adopts the version in effect on December 31, 2016.

(b) This publication is referenced in WAC 480-15-560 (Equipment safety requirements) and WAC 480-15-570 (Driver safety requirements).

(c) Copies of Title 49 Code of Federal Regulations are available from the U.S. Government Online Bookstore, http://bookstore.gpo.gov/, and from various third-party vendors.

[Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.353. WSR 17-15-054 (Docket A-170015, General Order R-589), § 480-15-999, filed 7/13/17, effective 8/13/17; WSR 16-05-035 (Docket A-151884, General Order R-585), § 480-15-999, filed 2/9/16, effective 3/11/16; WSR 15-06-048 (Docket A-143302, General Order R-579), § 480-15-999, filed 3/2/15, effective 4/2/15; WSR 14-05-001 (Docket A-131761, General Order R-574), § 480-15-999, filed 2/5/14, effective 3/8/14; WSR 13-05-023 (Docket A-121496, General Order R-569), § 480-15-999, filed 2/11/13, effective 3/14/13; WSR 12-05-063 (Docket A-111722, General Order R-564), § 480-15-999, filed 2/15/12, effective 3/17/12; WSR 11-04-041 (Docket A-101466, General Order R-562), § 480-15-999, filed 1/25/11, effective 2/25/11; WSR 09-01-171 (Docket A-081419, General Order R-554), § 480-15-999, filed 12/23/08, effective 1/23/09; WSR 06-17-087 (Docket A-060475, General Order No. R-537), § 480-15-999, filed 8/14/06, effective 9/14/06; WSR 05-21-022 (Docket No. A-050271, General Order No. R-521), § 480-15-999, filed 10/10/05, effective 11/10/05; WSR 04-01-152 (General Order No. R-511, Docket No. A-030852), § 480-15-999, filed 12/22/03, effective 1/22/04; WSR 02-18-033 (Docket No. A-020379, General Order No. R-501), § 480-15-999, filed 8/26/02, effective 9/26/02. Statutory Authority: RCW 80.01.040, 80.04.160, 81.04.160, and 34.05.310. WSR 01-20-061 (Docket No. A-010827, General Order No. R-491), § 480-15-999, filed 9/28/01, effective 10/29/01.]